

of his appointment he was a member of that House, be deemed to have vacated his seat.

Short title.

8. This Act may be cited as the New Ministries Act, 1917.

## CHAPTER 45.

An Act to extend and amend the Munitions of War Acts, 1915 and 1916. [21st August 1917.]

**B**E it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Power to give directions as to remuneration of certain classes of work.

1.—(1) If at any time during the continuance of the present war the Minister of Munitions considers it necessary, in order to maintain the output of munitions, that directions should be given with respect to the remuneration to be paid for work (being munitions work or work in connection therewith or work in any controlled establishment), which at the time when the directions are given is paid at time rates, he may, subject always and without prejudice to any agreement made between employers and workmen with the consent of the Minister with respect to the remuneration of such work, by order give such directions with respect to the remuneration of such work as he may consider necessary for the purpose of the maintenance or increase of output.

5 & 6 Geo. 5.  
c. 54.

(2) Any contravention of or non-compliance with any such directions shall be punishable in like manner as if the order in which the directions are contained was an award made in settlement of a difference under Part I. of the Munitions of War Act, 1915, but where a difference has arisen respecting matters on which the Minister of Munitions has given directions under this section the difference shall be referred to a special arbitration tribunal constituted under section eight of the Munitions of War (Amendment) Act, 1916.

5 & 6 Geo. 5.  
c. 99.

(3) Any directions given under this section may be varied from time to time, but shall not continue in force after the termination of the present war.

Restriction on employment of workmen who have been engaged on certain munition work.

2. The Minister of Munitions, on being satisfied that the provisions of section seven of the Munitions of War Act, 1915, as amended by any subsequent enactment, can consistently with the national interests be repealed, may by order repeal those provisions, and thereupon the following provisions shall have effect in lieu thereof :—

(1) It shall not be lawful for a person without the consent of the Minister of Munitions to give employment to a workman who has, since the passing of this Act, been employed—

(a) on or in connection with munitions work of a class specified in paragraph (a) of subsection (1) of section nine of the Munitions of War (Amendment) Act, 1916; or

(b) on or in connection with munitions work of any other class which may be specified in an order of the Minister of Munitions

where the work on which he is to be employed is not work on or in connection with munitions work.

The consent of the Minister of Munitions for the purposes of this provision may be given either as respects an individual case or generally as respects work or workmen of any particular class or description :

- (2) If any person contravenes this provision he shall be guilty of an offence, triable by a munitions tribunal of the second class, under the Munitions of War Act, 1915, unless he proves that he did not know that, and had taken all reasonable steps to ascertain whether, the workman had been so employed ; but proceedings for such an offence shall not be instituted except by the Minister of Munitions or the Admiralty, or by a person acting on his or their behalf :
- (3) A person guilty of such an offence shall be liable to a fine not exceeding five pounds for each day or part of a day during which the contravention continues :
- (4) The purpose of ascertaining whether the provisions of this section have been contravened in any establishment shall be included amongst the purposes for which the powers of entry, examination, and enquiry conferred by section seventeen of the Munitions of War (Amendment) Act, 1916, are exerciseable.

**3.—**(1) If the provisions of section seven of the Munitions of War Act, 1915, as amended by any subsequent enactment, are repealed by an order under this Act a contract of service between an employer and a workman employed on or in connection with munitions work shall, notwithstanding any agreement to the contrary, not be determinable by either party except by a week's notice or on payment of a sum equal to an average week's wages under the contract :

Termination of contracts.

Provided that this section shall not apply—

- (a) where under the contract a longer notice than one week is required ;
- (b) in the case of workmen engaged in ship-repairing, or of workmen of any class which is exempted by order of the Minister of Munitions on the ground that the circumstances of their employment were such that the provisions of this section ought not to apply to them, or of workmen whose employment is of a discontinuous or temporary nature ;

(c) in the case of the termination of a contract on the ground of such misconduct on the part of either party or his agent as would justify the immediate termination of the contract by the other party.

(2) Any sum payable in lieu of notice under this section by an employer or workman shall be recoverable before a munitions tribunal of the second class, and payment of a sum adjudged to be paid by such a tribunal in such proceedings shall be enforceable in like manner as payment of a fine imposed by the tribunal.

Nothing in this section shall be construed as affecting the operation of any of the other provisions of the Munitions of War Acts, 1915 to 1917.

Amendment of  
s. 6 of the Act  
of 1916.

4. If the provisions of section seven of the Munitions of War Act, 1915, as amended by any subsequent enactment, are repealed by an order under this Act, section six of the Munitions of War (Amendment) Act, 1916, shall apply to female workers employed on or in connection with munitions work in establishments of all classes, and accordingly in that section the words "of a class to which the provisions of section seven of the " principal Act, as amended by this Act, are for the time being " applied by an order made thereunder" shall be repealed.

Power to make  
certain awards  
as to wages  
binding on  
trades.

5.—(1) Where an award as to a change in the rate of wages payable to persons engaged on or in connection with munitions work, or as to hours of work or otherwise as to terms or conditions of, or affecting employment of, persons so engaged, has been made either under Part I. of the Munitions of War Act, 1915, or in pursuance of an agreement between representatives of employers and workmen, and the Minister of Munitions is satisfied that the award is binding upon employers employing the majority of the persons engaged on or in connection with munitions work in any trade or branch of a trade either generally or in a particular district, the Minister of Munitions may by order direct that the award shall be binding on all or any other employers and persons so engaged, either without modifications or subject in any particular cases to such modifications contained in the direction as the Minister may consider necessary to adapt the award to the circumstances of such cases, and in particular in order that no such other employer shall be enabled to pay less wages than are payable in the like circumstances by employers who were originally bound by the award.

(2) Where any such directions are given the award shall be binding not only on the employers and persons so engaged who are affected by the award as originally made, but also, subject to such modifications (if any) as aforesaid, on the other employers and persons so engaged to whom the directions relate, and any contravention thereof or non-compliance therewith shall be punishable in like manner as if the award and the order in which such directions are contained were an award made in

settlement of a difference under Part I. of the Munitions of War Act, 1915, and had been made in respect of a dispute affecting such employers and persons so engaged.

6.—(1) The Minister of Labour may make regulations with respect to the reporting of differences under section one of the Munitions of War Act, 1915, and with a view to preventing undue delay in negotiations for settling such differences may by those regulations prescribe the time within which any such difference is to be reported to him.

Reporting of differences.

(2) A difference may be reported under subsection (1) of section one of the Munitions of War Act, 1915, by or on behalf of any Government department; and accordingly in that subsection after the words “by or on behalf of either party to the difference” there shall be inserted the words “or by or on behalf of any Government department.”

7. At the end of the First Schedule to the Munitions of War Act, 1915, the following paragraph shall be inserted:—

Amendment of First Schedule of principal Act.]

(4) The tribunal shall make its award without delay, and where practicable within fourteen days from the date of reference.

8.—(1) The undertaking which the owner of a controlled establishment is by virtue of subsection (4) of section four of the Munitions of War Act, 1915, deemed to have entered into shall include an undertaking that piece prices, time allowances, or bonuses on output, or the rates or prices payable under any other system of payments by results, once fixed in the establishment may not be altered except in accordance with any procedure which has been adopted by agreement between the owner of the establishment and the workmen or their representatives and is in force in the establishment at the passing of this Act or by the direction of the Minister of Munitions, which direction shall not be given except in accordance with an agreement between the owner of the establishment and the trade unions representing the workmen affected by the alteration, or failing agreement after consultation with the parties concerned:

Restrictions on alteration of piece prices, &c., in controlled establishments.

Provided that this provision shall not apply where the alteration is made in accordance with the directions as to the rates of wages of female workers given by the Minister of Munitions under section six of the Munitions of War (Amendment) Act, 1916, nor shall this provision apply to shipbuilding yards or ship-repairing yards, but as respects such yards the Minister of Munitions or the Admiralty may make rules regulating the alteration of the rates or prices payable under systems of payments by results therein.

(2) Where an alteration of the rates or prices payable under a system of payment by results is made in accordance with the provisions of this section, paragraph seven of the Second Schedule to the Munitions of War Act, 1915, shall not apply.

Penalty on  
dismissal of  
workman on  
ground of  
membership  
of trade union.

**9.** No workman employed on or in connection with munitions work shall be discharged on the ground that he has joined or is a member of a trade union, or that he has taken part in any trade dispute, and if any employer discharges a workman on any such ground he shall be guilty of an offence triable by a munitions tribunal of the second class under the Munitions of War Act, 1915, and shall be liable to a fine not exceeding ten pounds, and the tribunal may order that the whole or any part of the fine imposed shall be paid as compensation to the workman :

Provided that nothing in this section shall prejudice any right of action for wrongful dismissal that the workman may have against his employer.

Proceedings  
under s. 4 (5)  
of principal  
Act.

**10.** Proceedings against a person for contravening or failing to comply with regulations made by the Minister of Munitions under subsection (5) of section four of the Munitions of War Act, 1915, shall not be instituted except by the Minister of Munitions or the Admiralty, or by a person acting on his or their behalf.

Application of  
s. 17 of principal  
Act.

**11.** Section seventeen of the Munitions of War Act, 1915, and section twenty-five of the Munitions of War (Amendment) Act, 1916, shall apply to any order or regulation made under this Act.

Short title and  
citation.

**12.** This Act may be cited as the Munitions of War Act, 1917, and shall be construed as one with the Munitions of War Acts, 1915 and 1916, and this Act and those Acts may be cited together as the Munitions of War Acts, 1915 to 1917.

## CHAPTER 46.

An Act for encouraging the production of Corn, and for purposes connected therewith (including provision as to Agricultural Wages and Rents).

[21st August 1917.]

**BE** it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

### PART I.

#### MINIMUM PRICE OF WHEAT AND OATS.

Payments to  
growers where  
average price  
of wheat or  
oats is less  
than mini-  
mum.

**1.** If the average price for the wheat or oats of any year for which a minimum price is fixed under this Act, as ascertained for the purpose of this Part of this Act, is less than the minimum price as fixed by this Act, the occupier of any land on which wheat or oats have been produced in that year shall be entitled to be paid by the Board of Agriculture and Fisheries in respect